



CITY OF MANCHESTER

PLANNING AND COMMUNITY DEVELOPMENT

Planning and Zoning
Building Regulation
Code Enforcement
Community Improvement Program

Jeffrey D. Belanger, AICP
Director

Nicola Strong
Deputy Director, Planning & Zoning

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Deputy Director, Building Regulations

August 31, 2026

Brown Capital LLC (Owner)
c/o Matt Brown
130 Knowlton Street
Manchester, NH 03103

Cronin, Bisson & Zalinsky, PC
c/o Christopher B. Drescher, Esq.
722 Chestnut Street
Manchester, NH 03104

RE: ZBA2026-078, 26 Sullivan Street, B-2

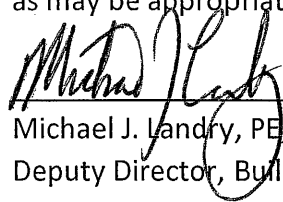
Zoning Relief Required for Building Permit

Your application for a permit dated **August 12, 2026** to construct a nine-unit small multifamily building on a lot with 5,430 SF of buildable lot area where 10,000 SF is required, with a height of four stories where three stories are allowed, where all the proposed dwelling units do not have access to a street facing entrance, with a retaining wall greater than 4' in height within 10' of a lot line, and where the retaining wall reaches a height of 18' in the rear yard where 8' is allowed in the MX-2 Zoning District, all as per documents submitted through **August 12, 2026** and with non-compliance listed in the Zoning Review dated **August 25, 2026** is hereby acknowledged.

According to Section(s) **5.3.1.F.4.D Required Buildable Lot Area, 5.3.1.F.5.B Height in Stories, 5.3.1.F.4.B Street Facing Entrance Required for All Dwelling Units, 8.2.4.B Retaining Wall Setback, 8.2.4-A Retaining Wall Height** of the Zoning Ordinance of the City of Manchester, New Hampshire, passed to be ordained on March 1, 2026, this is prohibited. Consequently, I have no authority to grant this permit. Permit is hereby DENIED.

Required Action(s): Site Plan Approval

Further proceedings contemplated pertaining to this application must be pursuant to NH Revised Statutes Annotated 674:33 or the other statutory provisions relative to Zoning Boards of Adjustment, as may be appropriate.



Michael J. Landry, PE, Esq.
Deputy Director, Building Regulations

Card #1 20-20 Sullivan St.

Htg....#529....'60...Joseph Vermette
Htg....#157....'61...A. A. Pouliot
Htg....#205....'61...George Vachon
Htg....#263....'61...Rosaire Dodier
Htg....#580....'61...Marjorie Gaillard
Htg....#811....'62...Paul Descoteau
B....#1397....'65...Maurice Tremblay
 (B-1)...application denied 11/9/65 M.Tremblay
 (B-1)...appeal granted 205-65-Z0
B....#1631....(B-1)....'65....Maurice Tremblay
B....#420.....'66....." "
B....#499.....'67....." "
B....#1099....'70....." "
B....#63.....'72....." "
Htg..#24.....'76....." "

Card #2 26-28 Sullivan St.

Htg...#181..'82...Maurice Tremblay
(See folder "Non-Conforming Structures" -re:
 Secr.8.00 - continuation of Non-Conformance)
 This is a 6-fam. dw.

26 SULLIVAN STREET
Variance History

B-1 Case: 205-65-ZO

Construct a 35' x 40' parking area with 5' and 6' retaining walls in the front portion of the lot.

GRANTED

Maurice Trembley



BOARD OF ADJUSTMENT

City of Manchester, N. H.

ZONING

NOTICE OF DECISION

Case No. 205-65-20

You are hereby notified that the request of

Name James A. Gunning

Address 411 Kelley St.

For A VARIANCE of the zoning ordinance of the city of Manchester,
An Exception — A Variance

New Hampshire, passed to be ordained on January 5, 1965.

TO: build 35' x 40' parking area with 5' & 6' retaining walls in front portion of lot at 26-28 Sullivan Street.

has been GRANTED by a majority of the appointed members of the
Board of Adjustment.
Denied — Granted

Resolved, if granted that the following conditions shall be attached to such use:

Signed

William Mansour

Date

December 6 19 65

NOTE: Application for rehearing on any question of the above determination may be taken within 20 days of said determination by any party to the action or person affected thereby according to New Hampshire revised statutes annotated, 1955 Chapter 31:74-76.

Building Department

ZONING REVIEW

Reviewed By: Kristin Bixby	Date: 8/19/2026	
Revised By: Glenn Gagne	Date Revised: 25-Aug-26	
Applicant Name: Christopher Drescher, Esq. (Agent)	Submission Date: 8/12/26	Map / Lot: 190/16
Street Address: 26 Sullivan Street	Street Status: Accepted	Alley Access: YES
Secondary Frontages (if any):		Ward: 11
Base Zone: MX-2 (Mixed-Use - General)		
Building Type: Small Multifamily		
Overlay District: None		

Planning Department / Board Action

- ☒ Site Plan
☐ Subdivision
☐ Planned Development
☐ Conditional Use Permit
☐ Voluntary Merger

Additional Overlays

- ☐ Airport Approach
☐ Airport Noise
☐ Airport Navigational Hazard
☐ FEMA Flood Plain

Additional Review Required

- ☐ Conservation Commission
☐ Regional Impact
☐ Heritage Commission

Dimensions	Existing	Proposed
Area of Lot (Square Feet)	Total Land Area: 8,250 SF; Buildable Land Area: 5,430 SF	
Area of Building on Lot (Square Feet)	2,877 SF	3,358 SF
Number of Stories	3	3
Total Area of All Floors (Square Feet)	5,742 SF	10,074 SF

Article 4 Uses	Permitted Per	Not Permitted Per	Remarks
☐ Dwelling, Multifamily (9 Units)	4.3-A.1-C		OK
☐			
☐			
☐			

Article 4 Additional Requirements Per Use	Section	Permitted/ Required	Proposed/ Existing	Remarks
☐ No more than 9 dwelling units per building in MX-2	4.4.1.C.1	9 Units Max.	9 units	OK
☐				
☐				
☐				
☐				
☐				
☐				

Article 5 Dimensional Requirements		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Minimum Lot Front-Loaded	5.3.1.F.3.A	75 ft.	81 ft.	OK
☐	Width Alley-Loaded	5.3.1.F.3.A	60 ft.		
☐	Maximum Lot Width at Frontage	5.3.1.F.3.A	150 ft.	81 ft.	OK
☐	Minimum Lot Depth	5.3.1.F.3.B	100 ft.	100 ft.	OK
☐	Front/Street Minimum	5.3.1.F.3.C	6 ft.	6'	OK
☐	Yard Setback Maximum	5.3.1.F.3.C	20 ft.		
☐	Minimum Combined Side Yard Setback	5.3.1.F.3.D	20 ft.	24' + 10.3'	OK: 34.3' Total
☐	Minimum Setback of One Side	5.3.1.F.3.E	10 ft.	10.3'	OK
☐	Minimum Rear Yard Setback	5.3.1.F.3.F	20 ft.	20.6'	OK
☒	Minimum Buildable Lot Area	5.3.1.F.3.G	7,500 SF / 6,000 SF	5,430 SF	N/C for building type, even with less units
☐	Maximum Lot Coverage	5.3.1.F.3.H	75%		OK
☐	Uses Within First Floor	5.3.1.F.4.A	Residential	Residential	OK
☐	Floors Upper Floors	5.3.1.F.4.A	Residential	Residential	OK
☐	Maximum Number of Dwelling Units per Building	5.3.1.F.4.C	9	9	OK
☒	Additional Lot Area Required for Residential Uses	5.3.1.F.4.D	1,000 SF/Unit after 5	8,250 SF	N/C - Minimum for 9 units is 10,000 SF
☐	Specific Standards: B. Alley-loaded lots definition	5.3.1.F.7.B	Require access to rear yard pkg	Side-yard pkg	OK - Alley
☐	Specific Standards: D. Walkway connects main entrance to street	5.3.1.F.7	Required	Provided	OK
☐	Specific Standards: A; C; E; F	5.3.1.F.7	Required	Met or N/A	OK. Standard A: Lot width under 150 Ft. All other standards - N/A.
☐	All dwelling units shall have access to a street-facing entrance	5.3.1.F.4.B	Required	See Plan	OK - To comply

Article 5 Height Requirements		Section	Permitted/ Required	Proposed/ Existing	Remarks
☒	Minimum Height in Stories	5.3.1.F.5.A	2 Stories	4 Stories	N/C
☐	Maximum Height in Stories	5.3.1.F.5.B	3 Stories		
☐	Maximum Height in Feet	5.3.1.F.5.C	40 ft.	See Plan	OK - Says TBD, not to exceed 40 ft
☐	Minimum First Story Height	-	N/A	N/A	OK

Article 5			Section	Permitted/ Required	Proposed/ Existing	Remarks
Street Façade Requirements						
☐	Entrance Type		5.4.2.A	Porch, Recessed Porch, Step, Recessed Entry, Stoop, Stoop With Lightwell, Forecourt, Terrace	Step	OK
☐	Street Façade Elements		5.4.2.B	N/A	N/A	OK
☐	Minimum Transparency per Façade	First Story - Primary	5.3.1.F.6.A	20%	See Plan	OK
☐		First Story - Secondary	5.3.1.F.6.A	20%	N/A	N/A - Not Corner Lot
☐		Upper Stories	5.3.1.F.6.A	20%	See Plan	OK
☐	Blank Wall	Primary Façade	5.3.1.F.6.B	15 ft. max.	See Plan	OK
☐	Limitations	Secondary Façade	5.3.1.F.6.B	15 ft. max.	N/A	N/A - Not Corner Lot
☐	Number of Street Entrances		5.3.1.F.6.D	Min. 1 entrance per building	1	OK
☐	Roof Types		5.4.6.E.3.b	Flat, Parapet, Pitched	Flat	OK - to be at least 12"
☐	Façade Variety		5.4.6.F	Required if building width > 50 ft.	N/A	OK - Building is 50 ft wide
☐	Building Materials		-	N/A	N/A	OK - N/A in MX-2

Article 5 Accessory Structures		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Setback	Front/Street Yards	5.6	6 ft.	OK*
☐		Side Yard		10 ft.	
☐		Rear Yard		4 ft.	
☐	Height	Side Yard	5.6		
☐		Rear Yard			
☐	Size Limits	Side Yard	5.6		

☐	SIZE LIMITS	Rear Yard	5.6		
☐	Special Requirements		5.6		*Retaining walls are only Acc. Strcs shown - addressed in Art. 8

Article 7 Parking Requirements		Section	Permitted/ Required	Proposed/ Existing	Remarks
☐	Surface Parking Location	5.3.1.F.3.I	Side or Rear Yard	Side/Rear Yard	OK
☐	Garage Location	5.3.1.F.3.J	Side or Rear Yard	N/A	OK - No garage proposed
☐	Parking, Number of Spaces	Table 7.2-A	9	9	OK
☐	Parking Surfaces	7.3.2	See Ord.	See Plan	OK
☐	Maximum Driveway Width	7.4.2.A	24'	85'	OK - Alley-loaded parking
☐	Parking, Setbacks, Front Lot Line	7.5.2.A	10 ft.	11 ft.	OK
☐	Parking, Setbacks, Side/Rear Lot Lines	7.5.2.A	10 ft. or 5ft. w/ Typ 1 Buff	0' on side. 5' in rear	OK side alley-loaded, rear to comply
☐	Parking, Setbacks, From Building	7.5.2.A.2	4 ft.	See Plan	OK
☐	Parking, Principal Frontage	7.5.2.B.2	Not Permitted	Not Proposed	OK
☐	Parking, Tandem	7.5.2.C	See Ord.	Not Proposed	OK
☐	Parking, Safety of Design	7.5.2.D	See Ord.	See Plan	OK
☐	Parking Lot Perimeter Landscape	8.1.3	Type 1	To Comply	OK
☐	Parking Lot Interior Landscape, Percent	8.1.5.A	N/A	N/A	OK - Under 20 pkg spaces
☐	Parking Lot Interior Landscape, Tree Distribution	8.1.5.B	N/A	N/A	OK - Under 20 pkg spaces
☐	Landscape Islands	Distribution	8.1.5.C.1	N/A	OK - Under 20 pkg spaces
☐		Island Dimensions	8.1.5.C.2	N/A	OK - Under 20 pkg spaces
☐		Shade Trees Required	8.1.5.C.3	N/A	OK - Under 20 pkg spaces
☐	Landscape Islands	Distribution	8.1.5.C.1	N/A	OK - Under 20 pkg spaces
☐		Island Dimensions	8.1.5.C.2	N/A	OK - Under 20 pkg spaces
☐		Shade Trees Required	8.1.5.C.3	N/A	OK - Under 20 pkg spaces
☐	Parking Lot Interior Landscape, Stormwater Integration	8.1.5.E	N/A	N/A	OK - Under 20 pkg spaces
☐	Parking, Bumpers	7.5.2.F	See Ord.	See Plan	5 ft from bldg - Sidewalk curbing required. To comply.
☐	Parking, Demarcation	7.5.2.G	See Ord.	See Plan	OK
☐	Parking, Illumination	7.5.2.H	See Ord.	See Plan	Not shown - To comply.
☐	Stacking, Number of Spaces	Table 7.5.3-A	N/A	N/A	OK - NR
☐	Stacking, Design	7.5.3.C	N/A	N/A	OK - NR
☐	Loading, Number of Spaces	Table 7.5.4-A	N/A	N/A	OK - Loading NR under 10 units
☐	Loading, Location	7.5.4.B	N/A	N/A	OK - Loading NR under 10 units
☐	Loading, Screening	7.5.4.D	N/A	N/A	OK - Loading NR under 10 units
☐	Loading, Dimensions	7.5.4.E	N/A	N/A	OK - Loading NR under 10 units

☐	Number of Accessible Parking Spaces	Table 7.6-A	1	1	OK
☐	Accessible Parking Space, Dimensions	7.6.5 & 7.6.6	See Ord.	8' x 18.5'	OK - With 8' Access Aisle

Parking Space Requirements	Unit of Measurement	Computation	Spaces Required
Building Use			
Multifamily Dwelling	1 per unit	9 units x 1 = 9	9
		TOTAL:	9

Article 6	Section	Permitted/ Required	Proposed/ Existing	Remarks
Special District-Wide Regulations				
☐ Limited Activity Buffer	6.4.2	N/A	N/A	OK
☐ Wetlands, No-Touch Buffer	6.4.3.C	10 ft.	N/A	OK - No wetlands shown
☐ Standard Structural Setback		25 ft.	N/A	OK - No wetlands shown
☐ Wetlands, No-Touch Buffer	6.4.3.D	25 ft.	N/A	OK - No wetlands shown
☐ High Priority Structural Setback		50 ft.	N/A	OK - No wetlands shown
☐ *Other*	6.4			N/A

Article 8	Section	Permitted/ Required	Proposed/ Existing	Remarks
Site and Landscaping Standards				
☐ Landscaping, Minimum Planting Size	8.1.1.D	5 gallon shrubs	To Comply	OK
☐ Landscaped Buffer Yards, Buffer Yard Type Standards	Table 8.1.2-A	Type 1	To Comply	OK
☐ Landscaped Buffer Yards, District Boundaries	Table 8.1.2-B			N/A
☐ Landscaped Buffer Yards, Use Abutting R or MX District Boundaries	Table 8.1.2-C			N/A
☒ Fences and Walls	8.2	See Ord.	Wall 0' to 18'	N/C
☐ Front and Street Yard	Table 8.2.4-A	4 ft.	Not Proposed	OK
☐ Fence Height Side Yard		6 ft.	Not Proposed	OK
☐ Rear Yard		8 ft.	5' stockade	OK - Screening toters
☐ Height of Fences on Walls	8.2.4.A	4 ft.	Not to exceed 4	OK
☒ Setback of Retaining Walls > 4 ft.	8.2.4.B	10 ft.	See Plan	N/C
☐ Screening of Dumpster & Utilities	Table 8.3-A	N/A	5' stockade	OK - Toters don't require screen
☐ Visibility at Intersections	8.4	30 ft.	N/A	
☐ Site Lighting Standards	8.5	See Ord.	Not Shown	To Comply
☐ Open Spaces	8.6	N/R	Not Proposed	OK

Section 8.7: Planned Developments	Proposed/ Existing	Remarks
☐ N/A		

*See Planned Development Standards Review Sheet

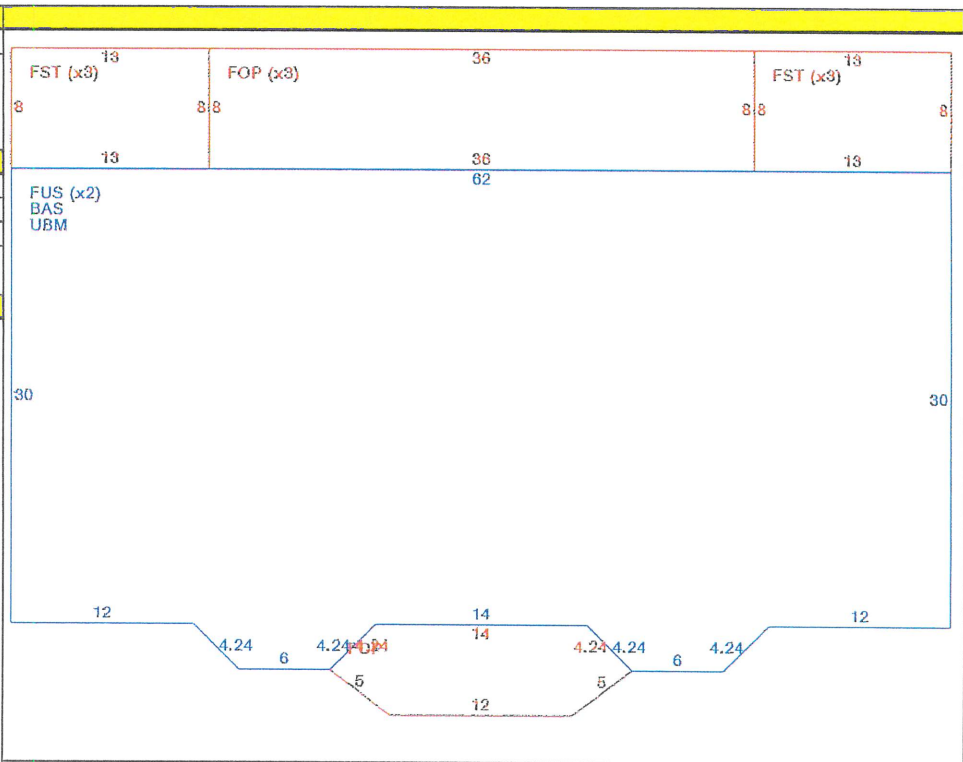
Article 9: Sign Standards	Proposed/ Existing	Remarks
☐ None proposed		

*See Sign Standards Review Sheet

CONSTRUCTION DETAIL			CONSTRUCTION DETAIL (CONTINUED)		
Element	Cd	Description	Element	Cd	Description
Style:	00	Res Style 4-8 Units			
Model	03	Multi-Family			
Grade:	03	Average			
Stories:	3	3 Stories			
Occupancy	6				
Exterior Wall 1	25	Vinyl Siding			
Exterior Wall 2					
Roof Structure:	01	Flat			
Roof Cover	04	Tar Gravel			
Interior Wall 1	05	Drywall			
Interior Wall 2	03	Plastered			
Interior Flr 1	14	Carpet			
Interior Flr 2	05	Vinyl/Asphalt			
Heat Fuel	03	Gas			
Heat Type:	05	Hot Water			
AC Type:	01	None			
Total Bedrooms	09	9+ Bedrooms			
Total Bthrms:	6				
Total Half Baths	0				
Total Xtra Fixtrs					
Total Rooms:	24	24 Rooms			
Bath Style:	02	Average			
Kitchen Style:	02	Average			
MHP					

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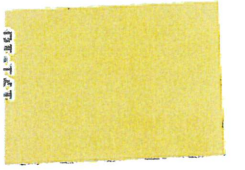
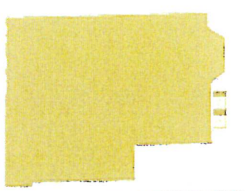
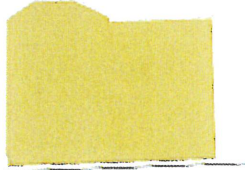
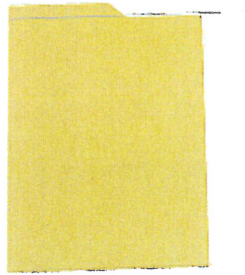
BUILDING SUB-AREA SUMMARY SECTION						
Code	Description	Living Area	Floor Area	Eff Area	Unit Cost	Undeprec Value
BAS	First Floor	1,914	1,914	1,914	123.04	235,498
FOP	Porch, Open	0	963	193	24.66	23,747
FST	Utility, Finished	0	624	187	36.87	23,008
FUS	Upper Story, Finished	3,828	3,828	3,828	123.04	470,995
UBM	Basement, Unfinished	0	1,914	383	24.62	47,124
Ttl Gross Liv / Lease Area		5,742	9,243	6,505		800,372



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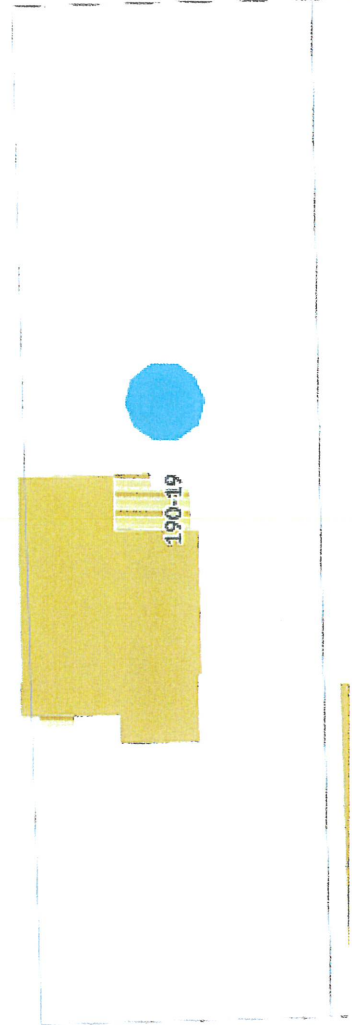
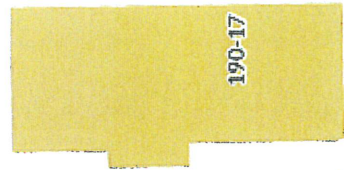
SULLIVAN STREET

SULLIVAN STREET

SULLIVAN STREET



FLAHERTY LANE



NOTRE DAME AVENUE

MAIN STREET

42.989352, 71.4751



City of Manchester
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Director

Pamela H. Goucher, AICP
Deputy Director Planning & Zoning

Michael J. Landry, PE, Esq.
Deputy Director Building Regulations

VARIANCE CRITERIA

Complete this form and attach 10 copies along with any supplemental material that would support your appeal.

Deadline for Next Hearing: _____

Property Location: 26 Sullivan Street, Manchester

Owner: Brown Capital, LLC; Matt Brown, duly authorized

Address: 130 Knowlton Street, Manchester, NH 03103

Phone #: _____

Email: _____

Applicant: Same

Address: _____

Phone #: _____

Email: _____

Relief Sought From Section(s): Article 5, F (4) Uses Within Floors and Residential Density

1. The variance would not be contrary to the public interest because: Please see attached narrative.

2. The spirit of the ordinance is observed because: Please see attached narrative.

3. Substantial justice would be done because: Please see attached narrative.

4. The values of surrounding properties would not be diminished because: Please see attached narrative.

5. Literal enforcement of the provisions of the ordinance would result in unnecessary hardship if:

(A) Owing to the following special conditions of the property that distinguish it from other properties in the area:

- No fair and substantial relationship exists between the general purposes of the ordinance provisions and the specific application of that provision to the property; **and**
- The proposed use is a reasonable one.

Please see attached narrative.

Or (B) Owing to the following special conditions of the property that distinguish it from other properties in the area, the property cannot be reasonably used in strict conformance with the ordinance, and a variance is therefore necessary to enable a reasonable use of it.

Please see attached narrative.

Applicant Signature

Print Name

Date

PRELIMINARY STATEMENT

The Applicant, ***Brown Capital, LLC***, requests a Variance from Article 5, F (4) (*Uses within Floors and Residential Density*) of the Manchester Zoning Ordinance (“MZO”) to allow for greater density in a multi-family building in the Mixed Use – General (MX-2) zone. This request is relative to a proposed new multi-family building to be constructed at 26 Sullivan Street, Manchester, NH 03103, which was historically used as a multi-family building with six (6) units until it was destroyed by a fire and subsequently demolished. The property is sometimes referred to as Tax Map Number 190-16 (the “Property” hereafter).

Article 5, F (4) allows for five (5) units minimum and, beyond that, every additional unit requires 1,000 SF. There is an allowable number of units up to nine (9) units as per the MZO.

Here, the request is to allow for nine (9) units total. However, currently due to the Property’s constraints there is 8,250 SF of lot area and 5,430 SF of buildable land. Therefore, the Property is deficient by 4,570 SF of buildable land.

It is worth noting that the slope of the Property is the reason for much of the deficiency as the Property would only be 1,750 SF short if the buildable area was measured by the lot size (8,250 SF). The previous building was, likewise, deficient at six (6) units without compliant buildable area SF.

The proposed units will be slightly over 1,000 SF. The proposed building will be three (3) floors with three (3) units per floor, thus, nine (9) units.

Finally, the surrounding area is comprised of buildings that have several units such as:

1. 8 units at 280 Main St. on 5000 sq ft (same block).
2. 12 units 246 Main St. on 5000 sq ft (same block).

3. 10 units 147 Notre Dame Ave on 13214 sq. ft. (same block).
4. 9 Units 202 Notre Dame Ave on 5000 sq. ft. (across street corner).
5. 9 units 217 Notre Dame Ave on 4620 sq. ft. (1 block up).

Variance Criteria

1. Granting the variance would not be contrary to the public interest because:

The standard for prongs one and two of the variance criteria is whether the requested relief, if granted, will *alter the essential character of the neighborhood* or *negatively impact the health, welfare, and safety of the surrounding area* and *mere conflict with the terms of the ordinance is insufficient* as all variance requests are somewhat averse to an ordinance, hence why the relief is sought in the first instance. Harborside Associates, L.P. v. Parade Residence Hotel, LLC, 162 N.H. 508 (2011).

Furthermore, it important to note that prong 1 is in the negative. That is to say that it does not require the Applicant to prove that the proposed use is IN the public interest, but only to prove that it is NOT CONTRARY TO the public interest.

Character:

If granted, the variance will not alter the essential character of the neighborhood because the general underlying use proposed, which is a *multi-family residential* use, is otherwise allowed in the zone. Generally, most of the residential buildings in the neighborhood are multi-family residential buildings.

Here, the proposed building will be new construction and in the style of a multi-family apartment house. Furthermore, the MZO does allow for up to nine (9) units but, here, the only short fall being the buildable land SF.

Moreover, there are several multi-family buildings in the area with density above what is currently allowed by the MZO.

This proposal will not alter, in any significant way, what has been present at the Property for decades, which is multi-family use. As such, the essential character of the neighborhood will remain the same.

Safety:

There is no evidence that would suggest an approval would have any negative effect on public health and welfare. The proposed building will not add any significant traffic and there is sufficient parking along Flaherty Lane to be compliant with the MZO. The Property has city water and sewer so there is no concern with respect to septic and water well radii or usage impacting surrounding properties. The proposed use as 'residential' is allowed in the zone.

2. If the variance were granted, the spirit of the ordinance would be observed because:

As a matter of law, the analysis for both prongs one and two of the Variance criteria are the same. As such, the Applicant incorporates and repeats the narrative of Prong 1 (above) and reiterates the same for Prong 2. Harborside Associates, L.P. v. Parade Residence Hotel, LLC, 162 N.H. 508 (2011).

3. Granting the variance would do substantial justice because:

Perhaps the only guiding rule [on this standard] is that any loss to the individual that is not outweighed by a gain to the general public is an injustice. Malachy Glen Assocs. v. Town of Chichester, 155 N.H. 102, 109 (2007).

Here, the loss to the applicant in not approving this variance would far outweigh any benefit to the general public.

The proposal adds housing to the City's stock at a time when the country is dealing with a housing shortage. Furthermore, the proposal will breathe a much-needed update into a site that suffered a fire followed by demolition.

Currently the Property is not generating much tax revenue and this proposal will invigorate the Property and the area while adding to the tax rolls.

Thus, if denied, the public gains nothing.

4. If the variance were granted, the values of the surrounding properties would not be diminished because:

What is being proposed will be an improvement for the Property, as well as the surrounding area. The Applicant desires to invigorate the Property and breathe new life into it.

There is simply no evidence to suggest what is being proposed would have a negative impact on the property values of the surrounding area.

5. Unnecessary Hardship:

"Hardship," under NH RSA 674:33, I (b) (1) (A) and (B) is a straight forward three step analyses;

- a. What are the special conditions of the property, if any;
- b. 'No fair and substantial relationship exists between the general public purposes of the ordinance provision and the specific application of that provision to the property,' which can be said another way that if the variance is granted would it unreasonably frustrate the purpose ordinance; and,
- c. Is the proposed use reasonable?

The special conditions (a) are satisfied due to the unique shape of the lot as it has a steep slope/grade. The highest point of the Property (west side) is approximately 231 feet while the

lowest side of the Property (East side) is approximately 203 feet. Thus, a slope of approximately 28 feet over a distance of approximately 100 feet.

Furthermore, the Property was previously used for a six (6) unit building that was non-conforming under today's zoning, which is significant evidence demonstrating that dwelling units in excess of what is allowed under the MZO has not caused any negative effects to the surrounding area. As noted, there are several multi-family buildings in the immediate area that have more units than what is allowed under the MZO.

Finally, the proposal is otherwise dimensionally compliant with the MZO, save for one other variance for a retaining wall.

Next is whether “[n]o fair and substantial relationship exists between the general public purposes of the ordinance provision and the specific application of that provision to the property.” See NH RSA 674:33, *et seq.* Or, again, if the variance is granted will it *unreasonably frustrate the purpose of the MZO.*

The purpose and goal of the Ordinance provision at issue is to foster more multi-family uses and mixed uses for a more urbanized area of the City. However, at the same time, the restrictions as to density are intended to avoid over-crowding.

As such, as a general rule the City would like to see more housing to combat the City's struggles with an unhoused population, as well as affordability. This proposal does add housing that is intended to be market-rate affordable to the ‘masses.’ Although the Applicant is not proposing workforce housing, per se, but is also not proposing something ‘luxury’ that only a few would be able to afford.

The Property can easily sustain nine (9) units and there is compliant parking.

With the previous building demolished after a fire, the stage is set to utilize this Property with its convenient location to downtown Manchester, to create newly constructed housing and maximizing its density without overly taxing the area and/or causing any threat to the public's health, safety, and welfare.

Overall, we contend that what the Applicant is asking for with respect to this relief will not unreasonably frustrate the purpose of the MZO.

As for (c), the proposed use is a residential use and the applicable zone allows for such residential uses, thus, the proposed use is reasonable.



REFERENCE PLANS

1. MANCHESTER/HAMPSHIRE

NOTES

1. ZONING TO BE APPROVED ON MARCH 1ST IS MIXED USE GENERAL (MX-2) ZONING DISTRICT.

	REQUIRED:	PROPOSED:
MIN. LOT SIZE:	6,000 S.F.	8,250 S.F.
MIN. BUILDABLE LAND:	6,000 S.F.	5,430 S.F.
MIN. LOT FRONTAGE:	60'	81'
MIN. BUILDING SETBACK:		
FRONT	6'	6.1'
SIDE	10'	10.3'
REAR	20'	30.6'
MAX. BUILDING HEIGHT:	40' (3 ST.)	TBD
MAX. LOT COVERAGE:	75%	70.2%
MAX. DENSITY:	0 UNITS	*9 UNITS

*BUILDABLE LOT AREA 6,000 SF (5 UNITS) & 1/1,000 SF PER UNIT THEREAFTER
*BUILDABLE LOT AREA OF 5,430 SF DOES NOT MEET MIN. BUILDABLE LOT AREA. VARIANCE REQUIRED FOR MINIMUM BUILDABLE LOT AREA AND DENSITY.

DENSITY: THE NUMBER OF DWELLING UNITS PER UNIT OF BUILDABLE LAND AREA. BUILDABLE LAND AREA: THE AREA OF A LOT EXCLUDING WETLANDS, LAND WITH SLOPES OVER TWENTY-FIVE PERCENT, WATER BODIES, REGULATORY FLOODWAYS, AND LAND RESTRICTED FROM DEVELOPMENT BY EASEMENTS, COVENANT OR OTHER LEGAL RESTRICTION. (NOTE: THE LOT SIZE REQUIREMENTS OF ARTICLE 6, TABLE OF DIMENSIONAL REGULATIONS, REPRESENT THE MINIMUM BUILDABLE LAND AREA REQUIRED BY THIS ORDINANCE WITHIN EACH OF THE ZONING DISTRICTS.)

2. USE (MULTI-FAMILY) PERMITTED

3. PARKING CALCULATIONS:
REQUIRED: 1.0 SPACES PER UNIT (9 UNITS) = 9 SPACES
PROPOSED: 9 SPACES

4. THE PROPERTY WILL BE SERVICED BY THE FOLLOWING SERVICES:
DRAINAGE: PRIVATE
SEWER: MUNICIPAL
WATER: MANCHESTER WATER WORKS
GAS: LIBERTY UTILITIES
ELECTRIC: EVERSOURCE
TELEPHONE: CONSOLIDATED
CABLE: COMCAST

5. BOUNDARY INFORMATION SHOWN HEREON IS BASED ON DIS INFORMATION.

6. TOPOGRAPHY WAS GENERATED FROM DIS INFORMATION.

7. STEEP SLOPES SHOWN ARE APPROXIMATE. TOWN REGULATIONS DEFINE SLOPES OF 25% AND GREATER TO BE NON-BUILDABLE.

8. EXAMINATION OF THE FLOOD INSURANCE RATE MAP FOR THE TOWN OF MANCHESTER, NEW HAMPSHIRE, HILLSBOROUGH COUNTY, COMMUNITY PANEL NUMBER 33011003760, INDICATES THAT THE SUBJECT PARCEL IS NOT LOCATED WITHIN A FLOOD HAZARD AREA.

9. WETLAND IMPACTS WILL REQUIRE AN APPLICATION TO NHDES WETLANDS BUREAU AND A VARIANCE FROM THE TOWN ZONING BOARD OF ADJUSTMENTS. OBTAINING THESE PERMITS WILL DEPEND ON THE WETLAND FUNCTION AND VALUES, AND SENSITIVITY OF THE PROJECT.

10. TESTING FOR SUITABLE AREAS FOR SEPTIC SYSTEMS AND WELLS WILL BE REQUIRED TO CONFIRM THAT SERVICES CAN BE PROVIDED ON SITE, AND/OR AVAILABLE MUNICIPAL SEWER AND WATER CAPACITY WILL NEED TO BE VERIFIED DURING THE DESIGN PROCESS.

11. SITE DEVELOPMENT MAY REQUIRE RETAINING WALLS FOR GRADE CHANGES.

12. EASEMENTS, RIGHTS, AND RESTRICTIONS SHOWN ARE THOSE WHICH IDENTIFIED BASED ON DATA USED IN CONCEPTUAL DESIGN. OTHER RIGHTS, EASEMENTS, OR RESTRICTIONS MAY EXIST WHICH DEED RESEARCH AND A TITLE EXAMINATION OF SUBJECT PARCEL(S) WOULD DETERMINE.

13. THE LOCATION OF ANY UTILITY INFORMATION SHOWN ON THIS PLAN IS APPROXIMATE. TFMORAN INC. MAKES NO CLAIM TO THE ACCURACY OR COMPLETENESS OF UTILITIES SHOWN. PRIOR TO ANY EXCAVATION ON SITE THE CONTRACTOR SHALL CONTACT DIG SAFE AT 1-888-344-7233.

14. INFORMATION DEPICTED ON THIS PLAN IS NOT A RESULT OF A SURVEY CONDUCTED BY TFMORAN INC. THIS PLAN IS SOLELY FOR CONCEPTUAL PURPOSES. A COMPLETE EXISTING CONDITIONS SURVEY AND SITE DESIGN CONSIDERATIONS MAY IMPACT SQUARE FOOTAGE, BUILDING ENVELOPE AND SITE LAYOUT.

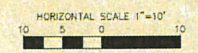
This plan is for conceptual purposes only. It is not necessarily the result of a complete on-site survey, nor is it intended for construction uses. Locations of boundaries and wetlands are approximate, and not necessarily correct or accurate. Compliance with current regulations must be verified.

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This plan is not effective unless signed by a duly authorized officer of TFMoran, Inc.

THIS PLAN IS A PRELIMINARY CONCEPTUAL DESIGN FOR SITE LOCATION FEASIBILITY AND DISCUSSION PURPOSES ONLY. ADDITIONAL PERMITS, WAIVERS, AND VARIANCE MAY BE REQUIRED UPON FURTHER DESIGN, REVIEW, AND COORDINATION WITH THE TOWN.



REV.	DATE	DESCRIPTION	DR	CK

TAX MAP 190 LOT 16
CONCEPTUAL SITE PLAN "F"
26 SULLIVAN ST
MANCHESTER, NH
OWNED BY
BROWN CAPITAL LLC
PREPARED FOR
MATT BROWN

SCALE: 1"=10'
JULY 23, 2026

Civil Engineers
Structural Engineers
Traffic Engineers
Land Surveyors
Landscape Architects
Scientists

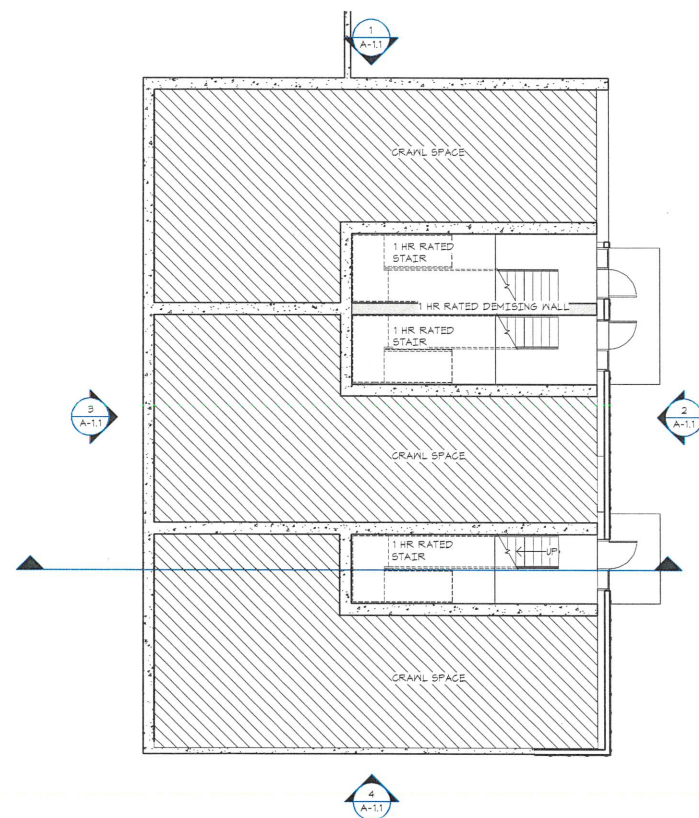
48 Constitution Drive
Bedford, NH 03110
Phone (603) 472-4488
Fax (603) 472-9747
www.tfmoran.com

18338-00

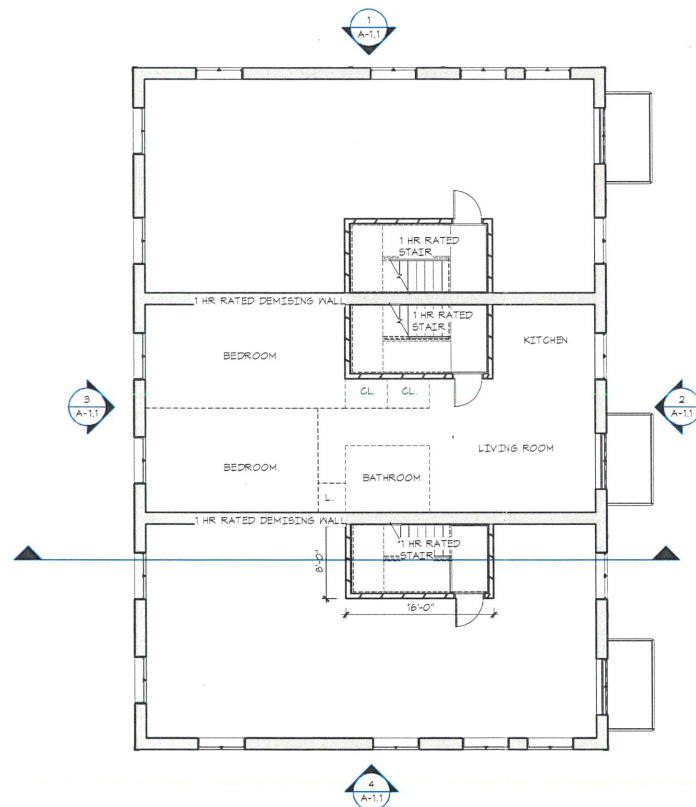
DR MSK
CK CR

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CADFILE

CONCEPT F



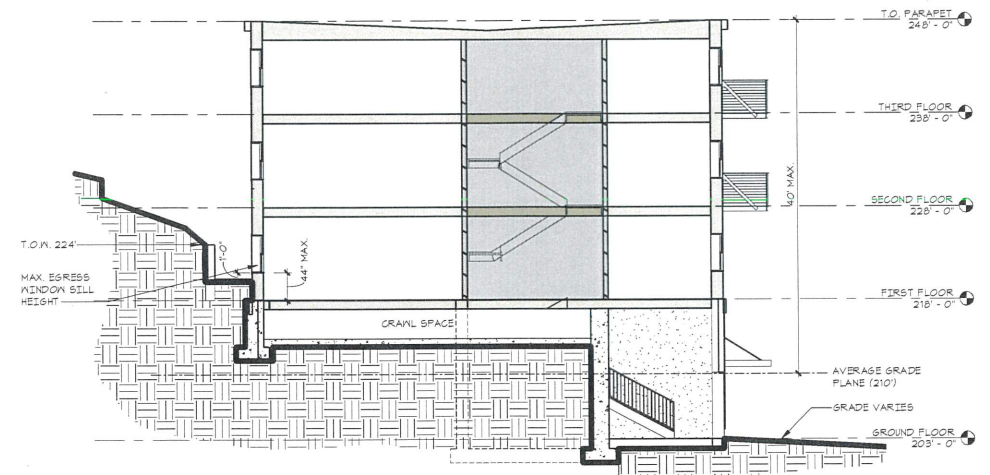
GROUND FLOOR PLAN
1/8" = 1'-0"



FIRST/SECOND/THIRD
FLOOR PLAN
1/8" = 1'-0"

SCHEMATIC PLANS

SCALE - 1/8" = 1'-0"



SCHEMATIC SECTION
1/8" = 1'-0"

SULLIVAN STREET APARTMENTS

Sullivan St. Manchester, NH

August 11, 2026

ARCHITECTURE
LAND PLANNING
INTERIOR DESIGN
3D VISUALIZATION

833 TURNPIKE ROAD P.O. BOX 104
NEW IPSWICH NEW HAMPSHIRE 03071



BRUCE
RONAYNE
HAMILTON
ARCHITECTS



2 FRONT ELEVATION
A-1 1/8" = 1'-0"



1 RIGHT ELEVATION
A-1 1/8" = 1'-0"



3 REAR ELEVATION
A-1 1/8" = 1'-0"



4 LEFT ELEVATION
A-1 1/8" = 1'-0"

SCHEMATIC ELEVATIONS

SCALE = 1/8" = 1'-0"

SULLIVAN STREET APARTMENTS

Sullivan St. Manchester, NH

AUGUST 11, 2026

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